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Bahrain Law No. 24/2026
On the Issuance of the Legal Profession Law

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[1 p.14]

Abrogating

Bahrain Decree-Law No. 26/1980 dated 08/12/1980

We, Hamad Bin Isa Al Khalifa, King of the Kingdom of Bahrain,

After perusal of the Constitution;

The Civil and Commercial Procedures Law, promulgated by Bahrain Decree-Law No. 12/1971, and its amendments;

Bahrain Decree-Law No. 14/1971 On Notarisation, as amended by Bahrain Decree-Law No. 37/2017;

Bahrain Decree-Law No. 3/1972 on Judicial Fees, and its amendments;

The Penal Code promulgated by Bahrain Decree-Law No. 15/1976, and its amendments;

The Legal Profession Law promulgated by Bahrain Decree-Law No. 26/1980, and its amendments;

The Law on Procedures before Sharia'a Courts promulgated by Bahrain Decree-Law No. 26/1986, and its amendments;

The Law of the Court of Cassation, promulgated by Bahrain Decree-Law No. 8/1989, and its amendments;

Bahrain Decree-Law No. 4/2001 on the Prohibition and Combating of Money Laundering and Terrorism Financing, and its amendments;

The Civil Code promulgated by Bahrain Decree-Law No. 19/2001, as amended by Bahrain Law No. 27/2017;

The Commercial Companies Law promulgated by Bahrain Decree-Law No. 21/2001, and its amendments;

Bahrain Decree-Law No. 27/2002 on the Establishment of the Constitutional Court, and its amendments;

The Judicial Authority Law promulgated by Bahrain Decree-Law No. 42/2002, and its amendments;

The Criminal Procedure Law promulgated by Bahrain Decree-Law No. 46/2002, and its amendments;

Bahrain Law No. 60/2006 On the Reorganisation of the Legislation and Legal Opinion Commission, and its amendments; and

Bahrain Decree-Law No. 30/2009 concerning Bahrain Chamber for Settlement of Economic, Financial and Investment Disputes, and its amendments,

The Arbitration Law promulgated by Bahrain Law No. 9/2015;

Bahrain Decree-Law No. 9/2024 on Bahrain International Commercial Court.

The Shura Council and the Council of Representatives approved the following Law, which we hereby ratify and promulgate:

Article 1

The provisions of the Legal Profession Law annexed hereto shall enter into effect.

Article 2

The Legal Profession Law promulgated by Bahrain Decree-Law No. 26/1980[2 p.14] shall be abrogated. Any provision in conflict with the provisions of the attached Law shall also be abrogated.

Article 3

Except for Lawyers registered on the Roll of Lawyers before the Court of Cassation, the Ministry concerned with Justice Affairs shall, within six (6) months from the date of entry into force of this Law, register the Lawyers enrolled in the General Roll of Lawyers referred to in Article 5 of the Legal Profession Law promulgated by Bahrain Decree-Law No. 26/1980, in the Rolls comprised in the Roll of Practising Lawyers, provided for in the attached Law, provided that Lawyers registered on the Roll of Practising Lawyers prior to the entry into force of this Law shall be entered in the Roll of Lawyers Admitted to Practise before the High Court of Appeal provided for in this Law.

Furthermore, Law Offices shall regularise their status in accordance with the provisions of the attached Law within one year from the date of its entry into force. The Minister concerned with Justice Affairs may issue a decision extending the period for regularising status referred to in the preceding paragraphs for a further similar period.

Article 4

The Minister concerned with Justice Affairs shall issue, within six (6) months from the date of entry into force of this Law, the decisions necessary for the implementation of its provisions. Until such decisions are issued, the decisions in force at the time of issuance of this Law shall continue to apply to the extent that they do not conflict with its provisions.

Article 5

The Prime Minister and the Ministers, each within their respective scope of competence, shall implement the provisions of this Law which shall come into force on the day following its publication in the Official Gazette.

Issued at Riffa Palace:

On: 28 Dhi Al-Hijjah 1447 H.

Corresponding to: 14 June 2026

King of the Kingdom of Bahrain

Hamad bin Isa Al Khalifa

This Law was published in the Official Gazette of the Kingdom of Bahrain, Issue No. 3889, dated 18 June 2026, P. 6.

Chapter 1 - General Provisions

Article 1

In application of the provisions of this Law, the following terms and expressions shall have the meanings assigned to them, unless the context requires otherwise:

Kingdom: The Kingdom of Bahrain.

Ministry: The Ministry concerned with Justice Affairs.

Minister: The Minister concerned with Justice Affairs.

Competent Authority: The Registrar General or any other entity within the Ministry specified by the Minister.

Association: The entity licensed in accordance with the Law to represent a group of Lawyers registered on the Roll, as specified by a decision of the Minister.

Roll: The General Roll of Lawyers set out in Paragraph (1) of Article (7) of this Law.

Specialised Rolls: The Rolls set out in Paragraph (2) of Article (7) of this Law, designated for the registration of Lawyers specialised in the practice of the legal profession in accordance with the language of litigation or the type of specialisation in the field of legal profession and other specialist fields.

Lawyer: A natural person whose name is registered on the Roll.

Law Office/Office: A private Law Office or any other establishment in the form of a firm through which it carries out the legal profession in accordance with the provisions of this Law.

Registration Committee: The Lawyer Registration Committee stipulated in Article (9) of this Law.

Disciplinary Board/Board: Lawyers' Disciplinary Board.

Courts: Courts of various types and degrees, including the Court of Cassation and the Constitutional Court.

Entities with Judicial Jurisdiction: Any entity or committee whose establishing law or any other Law confers upon it a judicial jurisdiction.

Fees: The remuneration due to the Lawyer for the legal services performed upon the instructions of the client.

Admission Examination: An examination that any person applying for registration on the Roll of Trainee Lawyers must successfully pass as a condition for such registration.

Registration Examination: An examination that a Trainee Lawyer must pass as a condition for registration on the Roll of Practising Lawyers.

Legal Work: Activities designated by a decision of the Minister as being equivalent to the legal profession for the purposes of implementation of the provisions of this Law.

Notification: Notifying the concerned person of the decision or the measure by any means indicating knowledge thereof, including electronic means.

Article 2

The legal profession is a liberal profession that contributes to the achievement of justice, the affirmation of the rule of Law, and the safeguarding of the right of defence and the protection of rights and freedoms.

Lawyers alone shall practise the legal profession independently, and shall be subject in the performance of their duties to no authority other than that of the Law.

Article 3

The following acts shall be deemed to constitute the practice of the legal profession:

1. 1- Appearance on behalf of concerned parties before Courts, arbitral tribunals, Entities with Judicial Jurisdiction, the Public Prosecution, the investigating judge, administrative investigation entities, and police departments, and their defence in lawsuits brought by or against them, as well as the conduct of pleadings and related judicial proceedings.
2. 2- Provision of legal advice.
3. 3- Drafting of contracts and any related legal procedures.

4. 4- Representation of parties in any non-judicial Legal Work pursuant to a special power of attorney.
5. 5- Any work provided for in any other law as constituting the practice of the legal profession.

Article 4

It is not allowed to combine the practice of the legal profession with any of the following:

1. 1- The presidency of legislative or municipal boards, or ministerial positions.
2. 2- Holding public positions in the State, or employment in any public authority or establishment, except in cases exempted by a decree issued upon the recommendation of the Council of Ministers.
3. 3- Employment in companies, banks, associations, or employment by individuals, except for professions licensed by the Ministry and exempted by a decision of the Minister.

Article 5

No person other than Lawyers registered in accordance with the provisions of this Law may practise the legal profession.

Article 6

A Lawyer may not practise the legal profession except after taking the oath before the Civil High Court of Appeal in the following terms:

"I swear by Almighty God that I shall perform my duties with honesty and integrity, that I shall maintain the confidentiality of the Legal Profession, and that I shall respect its laws and traditions".

Chapter 2 - General Roll of Lawyers

Article 7

A General Roll for the registration of Lawyers shall be established at the Ministry, in which their names, places of residence, places of practice, and contact details and information are entered. This Roll shall include the following:

1- The Roll of Practising Lawyers. The following Rolls shall be attached thereto:

a) The Roll of Lawyers Admitted to Practise before the Minor Court and the Major Court.

b) The Roll of Lawyers Admitted to Practise before the High Court of Appeal.

c) The Roll of Lawyers Admitted to Practise before the Court of Cassation and the Constitutional Court.

2- The Roll of Trainee Lawyers.

3- The Roll of Non-Practising Lawyers.

The Minister may issue a decision specifying the Specialised Rolls, according to language or type of specialisation, and the conditions for registration and removal therefrom.

Article 8

For registration on the Roll, the following requirements shall be met:

1- He shall be of Bahraini nationality.

2- He shall enjoy full legal capacity.

3- He shall hold a bachelor’s degree in law or in Sharia and Law, or an equivalent certificate, from one of the faculties of universities recognised by the relevant authorities. The Minister may, by decision, specify the necessary additional certificates recognised as a condition for registration on the Specialised Rolls.

4- He shall be of good reputation and conduct, worthy of the respect accorded to the legal profession, and shall not have been convicted by a final judgment of a felony or a crime involving moral turpitude or dishonesty, unless he has been rehabilitated. He shall not have been dismissed from service or removed from office by a final judgement or a final disciplinary decision, unless at least three (3) years have passed from the date of either decision.

5- He shall not fall within any of the cases of incompatibility set forth in Article (4) of this Law.

6- He shall successfully pass the Admission Examination. The rules, conditions, and criteria for the Examination, as well as the body responsible for designing and administering it, shall be determined by a decision of the Minister.

7- He shall not have been subject to a final disciplinary decision permanently striking his name off the Roll.

Any Lawyer who no longer satisfies any of the registration conditions set out in the preceding paragraph shall be struck off the Roll by a decision of the Minister.

Article 9

A Committee named as the "Registration Committee" shall be established under the chairmanship of a judge whose rank shall not be lower than that of a President of the Major Civil Court, and comprising a judge and a Practising Lawyer Admitted to Practise before the Court of Cassation and the Constitutional Court, selected by the Minister in coordination with the Association. The Committee shall have jurisdiction to consider applications for registration on the Roll and transfer between the Rolls comprised therein.

The Registration Committee shall be formed and its rules of procedures shall be issued by a decision of the Minister, subject to the approval of the Supreme Judicial Council.

The term of membership of the Registration Committee shall be two (2) years. Where the seat of any member of the Committee becomes vacant, the member appointed in his place shall complete the remainder of his predecessor's term.

Article 10

Applications for registration on the Roll and for transfer between the Rolls comprised therein shall be submitted to the Competent Authority, accompanied by the documents specified by a decision of the Minister.

The Registration Committee shall, upon referral of the applications to it, examine such applications and submit its recommendations thereon to the Minister within one month from the date on which the complete documents are submitted to the Competent Authority. The Minister shall issue his decision on the application within one month from the date on which the Registration Committee submits its recommendations thereon. Where the application is expressly rejected, the decision shall be justified. The elapse of such period without a decision shall be deemed an implied rejection.

Article 11

Lawyers registered on the Roll of Practising Lawyers and the Roll of Trainee Lawyers shall renew their registration on a regular basis each year, in accordance with the conditions and controls specified by a decision of the Minister. They may pay the registration renewal fees in advance for more than one (1) year, up to a maximum of three (3) years.

The applicant for renewal of registration shall be notified of the decision and the reasons therefor in the event of rejection. In such case, any fees paid in advance shall be recoverable.

Article 12

The fees for registration on the Roll, the fees for transfer between the Rolls comprised therein, and the registration renewal Fees shall be determined by a decision of the Minister, subject to the approval of the Council of Ministers.

Article 13

Where a Lawyer fails to pay the registration renewal fees by the end of the year in respect of which such renewal fees are due, the Minister may, by a decision and upon Notification, transfer his name to the Roll of Non-Practising Lawyers. In this case, a Lawyer shall not be registered on the Roll of Practising Lawyers, unless he pays a new registration fee together with twice the late renewal fee.

Article 14

A Practising Lawyer or a Trainee Lawyer who ceases to practise the legal profession for any reason shall submit an application to the Competent Authority at the Ministry to transfer his name to the Roll of Non-Practising Lawyers.

A Lawyer whose name is registered on the Roll of Non-Practising Lawyers may submit an application to the Competent Authority at the Ministry for the transfer of his name to the Roll of Practising Lawyers or to the Roll of Trainee Lawyers, as the case may be, upon his return to the practice of the legal profession.

Article 15

A Practising Lawyer shall, whenever so requested, provide evidence of having practised the legal profession for the preceding two consecutive years; otherwise, he shall be deemed to have ceased practising the legal profession. The Minister may, by a decision, transfer his name to the Roll of Non-Practising Lawyers, unless he provides an acceptable justification for such cessation.

Article 16

The registration of a Lawyer on the Roll of Non-Practising Lawyers shall be effected by transfer from the Roll of Practising Lawyers or the Roll of Trainee Lawyers, as the case may be.

A Non-Practising Lawyer who has been registered on the Roll of Non-Practising Lawyers for five years or more, and who applies for the transfer of registration to the Roll of Practising Lawyers, shall fulfil the conditions for registration set out in Article (8) of this Law. A Lawyer shall be exempt from the condition set forth in Clause (6) of the said Article, if, during the period on non-practice, has served as a judge, member of the Public Prosecution, a member of the Legislation and Legal Opinion Commission, or a legal Officer at the State Cases Authority, or as a legal consultant, or in senior legal positions in the legal departments of

ministries, government authorities, or public authorities or public establishments, or has engaged in the teaching of law in recognised universities, or has practised any other Legal Work.

Article 17

For registration on the Roll of Lawyers Admitted to Practise before the High Court of Appeal, a Lawyer must have been registered on the Roll of Practising Lawyers for at least four (4) years, or have served for at least four (4) years as a judge, a member of the Public Prosecution, or a member of the Legislation and Legal Opinion Commission, or have worked at least six (6) years as a legal officer at the State Cases Authority, or as a legal consultant, or in senior legal positions in the legal departments of ministries, government authorities, or public authorities or public establishments, or have engaged in the teaching of law in recognised universities, or have practised any other Legal Work.

For registration on the Roll of Lawyers Admitted to Practise before the Court of Cassation and the Constitutional Court, a Lawyer must have been registered on the Roll of Practising Lawyers for at least eight (8) years, or have served for at least eight (8) years as a judge, a member of the Public Prosecution, or a member of the Legislation and Legal Opinion Commission, or have worked at least ten (10) years as a legal officer at the State Cases Authority, or as a legal consultant, or in senior legal positions in the legal departments of ministries, government authorities, or public authorities or public establishments, or have engaged in the teaching of law in recognised universities, or have practised any other Legal Work.

Chapter 3 - Trainee Lawyer

Article 18

A Lawyer shall be registered on the Roll of Trainee Lawyers for the first time where he does not satisfy the conditions for registration in any of the Rolls comprised in the Roll of Practising Lawyers set out in this Law.

A Trainee Lawyer shall pass a training period of at least two (2) years by joining the Office of a Practising Lawyer registered on the Roll of Lawyers Admitted to Practise before the High Court of Appeal.

Furthermore, a Trainee Lawyer shall, upon completion of the training period, undergo a training course to be held at an entity specified by a decision of the Minister, and shall successfully pass the Registration Examination. The rules, conditions and criteria for conducting the Examination, as well as the body responsible for designing and administering it, shall be determined by a decision of the Minister.

Article 19

A Trainee Lawyer may plead in his own name before the Minor Courts on his own responsibility. He shall not otherwise plead except in the name of the Lawyer in whose Office he is training and under whose supervision and responsibility he is placed. This prohibition shall include the signing by the Trainee Lawyer of pleadings, memoranda, documents, and applications submitted to Courts before which he is not authorised to plead in his own name.

A Trainee Lawyer, under the supervision of the Lawyer in whose Office he is training, shall have the right to appear before arbitral tribunals, Entities with Judicial Jurisdiction, the Public Prosecution, the investigating judge, administrative investigation entities, and police departments.

Article 20

A Trainee Lawyer shall not open an Office in his own name during the training period. In the case of any violation thereof, the Minister shall issue a decision ordering the closure of the Office. The closure decision shall be published in the official gazette at the expense of this Lawyer.

Article 21

A Trainee Lawyer who satisfies the conditions set forth in Article (18) of this Law may submit an application to the Minister for the transfer of his name to the Roll of Practising Lawyers Admitted to Practise before the Minor Court and the Major court.

The Competent Authority shall refer applications for transfer to the Registration Commission, which shall examine such applications and submit its recommendations in this regard to the Minister, within one (1) month from the date of submission of complete documents to the Competent Authority. The Minister shall issue his decision on the application within one (1) month from the date of receipt of the Registration Committee's recommendations. The Minister may request the Lawyer in whose Office the training was conducted to submit a report expressing his opinion on the competence of the Trainee Lawyer, his professional conduct, and the work performed by him, together with his recommendations in this regard. The Minister's decision shall be either to accept or reject the application, or to extend the training period for a period not exceeding one (1) year. The lapse of this period without a decision shall be deemed an implied rejection.

Article 22

Notwithstanding the conditions set forth in Article (18) of this Law, persons who have previously served as judges, members of the Public Prosecution, members of the Legislation and Legal Opinion Commission, or as legal officers at the State Cases Authority, or as legal consultants, or in senior legal positions in the legal departments of ministries, government authorities, or public authorities or public establishments, or who have engaged in the teaching of law in recognised universities, or who have

practised any Legal Work for a period of not less than five (5) years, may be registered on the Roll of Practising Lawyers, subject to the conditions and controls determined by a decision of the Minister.

Chapter 4 - The Rights and Obligations of Lawyers

Article 23

By way of exception to the provisions of Article (5) of this Law, litigants may, under a special power of attorney, appoint their spouses, in-laws, and relatives up to the third degree, to represent them before Courts, except for the Court of Cassation and the Constitutional Court.

Article 24

By way of exception to the provisions of Article (5) of this Law, and subject to the relevant agreements in force in the Kingdom and the principle of reciprocity, the Minister may, by a decision, authorise a non-Bahraini Lawyer to practise the legal profession jointly with a Bahraini Lawyer Admitted to Practise before the Court of Cassation and the Constitutional Court, in one or more specified cases before Specialised Departments designated by a decision of the Supreme Judicial Council, except in criminal, administrative, sharia'a, personal status, rental, and labour lawsuits.

Subject to the approval of the Supreme Judicial Council, the Minister shall issue a decision specifying the controls, conditions, and procedures for the grant and renewal of the licence, its term, and its scope.

The Minister shall also, subject to the approval of the Council of Ministers, issue a decision specifying the Fees for the grant and renewal of the licence.

The provisions of Chapter 7 of this Law shall apply to non-Bahraini Lawyers.

Article 25

Subject to the relevant agreements in force in the Kingdom, the Minister may, by a decision, authorise Foreign Legal Consultancy Offices having sufficient specialised international expertise to provide legal advice, subject to the following requirements:

1. 1- The Foreign Legal Consultancy Office shall have a resident director in charge in the Kingdom. Such director shall have legal qualifications and experience commensurate with the standing and stature of such Office, and shall be duly authorised by the head office to manage the Office's branch in the Kingdom.
2. 2- The Foreign Legal Consultancy Office shall not provide legal advice on any matter directly related to the laws of the Kingdom unless such legal advice has been reviewed by a Lawyer Admitted to Practise before the Court of Cassation and the Constitutional Court, in order to verify the extent of its compliance with those laws. The Foreign Legal Consultancy Office shall retain, within its records, evidence of such review.

The provisions of Chapter 7 of this Law shall apply to Foreign Legal Consultancy Offices. The licence shall be granted for a period of five (5) years, renewable for similar periods upon payment of the fees. Such Offices shall be recorded in a special roll established for this purpose. Subject to the approval of the Council of Ministers, the Minister shall, by a decision, specify the conditions, controls, procedures, and fees for the licence and for registration in the special roll of such Offices.

Article 26

Courts, Entities with Judicial Jurisdiction, the Public Prosecution, law enforcement bodies, and other authorities before which a Lawyer practises his profession shall provide him with the facilities necessary for the performance of his duties. They shall also allow him to attend investigations and have access to the case documents. Such matters shall be recorded in writing in the case documents.

Article 27

A Lawyer shall appear on behalf of his client pursuant to a notarised or certified power of attorney, as the case may be. The Lawyer shall deposit a copy of such power of attorney in the case file.

Article 28

Subject to the provisions of Article (19) of this Law, a Lawyer may, under his responsibility, delegate another Lawyer registered on the Roll of Practising Lawyers or the Roll of Trainee Lawyers, as the case may be, to appear, plead, or undertake other litigation procedures, without a special power of attorney, unless the power of attorney issued to him provides otherwise.

Article 29

A Lawyer shall, in his professional and personal conduct, comply with the principles of honour, integrity, and probity, and shall perform all the obligations imposed by Law and by the Code of Conduct issued by a decision of the Minister in coordination with the Association.

A Lawyer shall appear before the Courts in the Lawyer's court dress as determined by a decision of the Minister in coordination with the Supreme Judicial Council. A Lawyer shall ensure that his appearance is decent and respectable.

Article 30

A Lawyer shall be responsible to his client for the performance of his duties entrusted to him in accordance with the provisions of the Law and the conditions of the power of attorney. A Lawyer shall defend the interests entrusted to him efficiently and shall exert all efforts and due care.

Subject to the provisions of Article (42) of this Law, a Lawyer shall return to his client all amounts collected on his behalf, as well as the original documents, papers, and instruments received from him or on his behalf, upon request or upon the termination of the subject-matter of the power of attorney, as the case may be.

The client's right to claim from his Lawyer the return of the documents, papers, and instruments referred to in the preceding Paragraph shall lapse upon the expiry of five (5) years from the date of termination of the work that is the subject matter of the power of attorney. This period shall be interrupted by any written claim indicating knowledge thereof, including electronic means.

Article 31

A Lawyer shall have a suitable Office to practise his profession. The headquarters shall be located within the Kingdom, and he shall notify the Ministry of his address, the particulars of his partners, the Lawyers employed by him, and others working for his account in legal and administrative work, as well as their contact details, and any changes to such particulars, through the electronic means approved by the Ministry.

A Lawyer's Office shall be deemed an elected domicile for the service of Notifications and notices relating to his clients, as well as judicial notices in accordance with the Law, in respect of the lawsuit in which he is assigned or the work agreed upon, where such matter is agreed upon between the Lawyer and his client.

Article 32

A Lawyer may not employ in his Office, for the practice of the legal profession, any person other than those registered on the Roll of Practising Lawyers or the Roll of Trainee Lawyers.

A Lawyer may enter into contract with Bahraini or non-Bahraini legal practitioners to work in his Office, except for a Lawyer suspended during the period of suspension or a Lawyer whose name has been permanently struck off the Roll, provided that their work is limited to the provision of legal advice without direct communication with clients, except in the presence of a Bahraini Lawyer working in the Office.

A Lawyer shall record the particulars of all legal practitioners employed by him in the register established for this purpose at the Ministry, in accordance with the procedures, conditions, and controls specified by a decision of the Minister.

Article 33

Subject to the provisions of Bahrain Decree-Law No. 4/2001 on the Prohibition and Combating of Money Laundering and Terrorism Financing[3 p.14] and the decisions issued in implementation thereof, the Law Office shall maintain a special bank account through which all financial transactions relating to the practice of the legal profession, including Fees, shall be conducted exclusively.

The Minister may, in coordination with the Central Bank of Bahrain, issue a decision regulating the bank account of the Law Office, and all financial transactions conducted through it.

Article 34

A Lawyer who has held a ministerial position or any public or private employment and has left such service shall not accept, whether personally or through a Lawyer employed by him, representation in a lawsuit or work against the entity for which he was employed during the three (3) years following the termination of his service.

Furthermore, members of legislative or municipal boards who are Lawyers shall not accept, whether personally or through Lawyers employed by them, representation in a lawsuit or work against the boards of which they are members. Such prohibition shall remain effective for three (3) years following the termination of membership in such boards.

In addition, a former judge or a former member of the Public Prosecution who has practised the legal profession shall not accept, whether personally or through a Lawyer employed by him, representation in any case which was previously referred to him or in which he conducted investigations in his former capacity, or in any other lawsuit or work related thereto.

Article 35

A Lawyer may not withdraw from representation and terminate his mandate at an inappropriate time. He shall notify the client of such withdrawal and shall continue to defend his interests and to carry out the proceedings and the necessary work for a period of not less than one (1) month from the date of Notification, where the client's interests so require, unless the client notifies him of acceptance of such withdrawal and termination of the power of attorney. In such case, the court shall adjourn the proceedings for a sufficient period for the appointment of another Lawyer.

Article 36

A Lawyer may not disclose any information or particulars of an incident that came to his knowledge by reason of his profession, nor may discuss such information or particulars through any media, including electronic media, social media, or any other means, in a manner that causes harm to any other person, even after the termination of his mandate, unless such matter is intended to prevent or report the commission of a felony or misdemeanour, or where such disclosure is considered an obligation under the applicable laws in the Kingdom. A Lawyer shall not be required to give testimony in a dispute in which he has been appointed as a Lawyer or has provided advice, unless he is permitted in writing by the client to do so.

Article 37

A Lawyer shall not engage in any of the following acts that conflict with the interests of his clients:

1. 1- Accepting representation of the adversary of his client in any case in which he has been instructed.
2. 2- Providing legal advice to the adversary of his client in the same lawsuit or in a related case, even after the termination of his mandate.

The Minister may, by a decision, add other cases deemed to constitute conflicts of interests.

Except for the preceding cases, a Lawyer shall disclose in writing to his client, prior to acceptance of the power of attorney or during the course of representation, as the case may be, any matter within the preceding five (5) years that may constitute an indirect conflict of interest. A Lawyer may not accept or continue such representation unless he has obtained the client's written consent following full disclosure.

This prohibition shall apply to any person employed in the Lawyer's Office to perform any administrative or Legal Work.

Chapter 5 - Law Offices

Article 38

A Lawyer shall practise the profession through a Law Office either individually or as a partner within a firm whose objective is the practice of the legal profession, or pursuant to an employment contract with any Law Office.

Article 39

A Lawyer who is a partner in a Law Office may not be a partner in more than one law firm.

Article 40

By way of exception to the provisions of Article (38) of this Law, a Bahraini Lawyer may practise the legal profession through a Law Office whose headquarters is located outside the Kingdom, provided that such Lawyer submits to the Competent Authority at the Ministry evidence of his regular practice of the profession through that Office. The Competent Authority at the Ministry shall specify the documents evidencing the same.

Chapter 6 - Fees and Legal Aid

Article 41

A Lawyer may enter into a contract with his client determining his Fees for the work performed within the scope of his profession, and shall also be entitled to recover all expenses paid for the purpose of initiating the lawsuit or the work for which he has been instructed.

Article 42

A Lawyer may, on the basis of a written agreement, directly deduct from the amounts collected on behalf of his client, the agreed Fees, as well as the costs, charges, and expenses incurred for the purpose of initiating the lawsuit or the work for which he has been instructed.

Article 43

A Lawyer may not acquire some or all of the disputed rights.

It shall be allowed to agree that the Fees be calculated as a percentage, provided that such percentage does not exceed twenty-five per cent (25%) of the adjudged amount, or the amount agreed upon by way of conciliation, as the case may be.

Where the case is lost and the agreed Fees are calculated as a percentage of the adjudged amount, the Lawyer shall not be entitled to any Fees.

Article 44

Where a Lawyer concludes a case by way of conciliation or arbitration, as instructed by his client, he shall be entitled to the Fees agreed in the contract in full, unless otherwise agreed between the parties.

Article 45

The Major Civil Court shall have jurisdiction to determine the Fees in the following cases:

1. 1- Where no agreement exists, or where the agreement has been declared void by a final judgement.
2. 2- Where the disputed Fees relate to work that was required to be submitted to the court but was not so submitted.
3. 3- Where the client dismisses the Lawyer before the completion of the work for which he was assigned, in accordance with Article (48) of this Law.

The assessment shall be made at the request of the Lawyer or the client, in accordance with the ordinary procedures for submitting the lawsuit. In assessing the Fees, the court shall take into account the importance of the case, the time and effort exerted by the Lawyer, the result achieved, the extent of the work completed in relation to the work agreed upon, and the Fees customarily charged in the legal profession.

Article 46

Fees and expenses related thereto shall be deemed as a preferential right ranking after the amounts due to the Public Treasury, over the funds devolving upon the client as a result of the Lawyer's work.

Article 47

The right of the Lawyer or the client to request the assessment of Fees shall lapse, in accordance with the provisions of Article (45) of this Law, upon the expiry of five (5) years from the date of termination of the work, which is the subject matter of the power of attorney.

Article 48

The client may dismiss his Lawyer, and in this case, he shall be required to pay Fees in commensurate with the effort exerted, the result achieved, and the extent of the work completed up to the date of dismissal, in relation to the work agreed upon.

Article 49

The Minister shall, by a decision, establish a Committee named the "Legal Aid Committee", which shall be competent to assign Practising Lawyers to appear and plead.

The Minister shall, by a decision, specify the rules of procedures of the aforementioned Committee, the cases eligible for legal aid, the documents required to be submitted regarding the request for legal aid, the mechanism for selecting assigned Practising Lawyers and defining their responsibilities, and the manner of carrying out and monitoring their work.

The decision issued by the Legal Aid Committee shall, upon approval by the Minister, be deemed to constitute a power of attorney issued by the client to the Practising Lawyer, and shall not be subject to any fees.

Chapter 7 - Disciplinary Liability and Penalties

Article 50

Without prejudice to civil or criminal liability, any Lawyer who violates the provisions of this Law or the decisions issued in implementation thereof, or who breaches the duties of his profession, or performs any work contrary to the dignity or traditions of the profession, or which undermines its dignity, shall be subject to disciplinary liability and to any of the following penalties:

1. 1- Written warning notice.
2. 2- Requiring attendance at specialised training programmes or courses appropriate to the type of the violation, in accordance with the controls issued by a decision of the Minister.
3. 3- Administrative fine not exceeding BHD one thousand (1,000).
4. 4- Suspension from practising the legal profession for a period not exceeding three (3) years.
5. 5- Permanent striking off from the Roll.

Article 51

A disciplinary complaint shall be submitted against a Lawyer to the Competent Authority at the Ministry, accompanied by the documents evidencing the commission of the violations attributed to him. The Competent Authority shall communicate with the Lawyer against whom a complaint is submitted, as well as the complainant, to submit their replies and clarifications within

thirty (30) days from the date of Notification of the complaint. The Competent Authority shall, upon completion of the procedures, prepare a memorandum of opinion and submit it to the Minister to determine to stay the complaint or suspend it temporarily, or refer it to the Disciplinary Board referred to in Article (54) of this Law.

The Competent Authority may, on its own motion, initiate a disciplinary complaint against a Lawyer, after notifying him to submit the replies and clarifications.

Article 52

A disciplinary action shall be brought by a petition submitted by the Minister, and such petition shall be served on the Lawyer against whom the disciplinary action is brought by any means indicating knowledge, including electronic means, within at least fifteen (15) days prior to the date of the first session of the Disciplinary Board, provided that the petition sets out the violations attributed to the Lawyer.

A Lawyer may authorise another Lawyer to act on his behalf, unless the Board orders him to appear in person.

Article 53

A disciplinary complaint shall not be admissible after six months (6) from the date of becoming aware of the violation, or after one (1) year from the date of termination of the power of attorney or the work that is the subject matter of the power of attorney, whichever period expires first.

Article 54

A "Disciplinary Board" shall be established by a decision of the Minister, presided over by a judge of a grade not lower than that of a president of the Major Civil Court, and comprising two judges selected by the Supreme Judicial Council, and two Practising Lawyers Admitted to Practise before the Court of Cassation and the Constitutional Court, appointed in coordination with the Association.

The term of membership of the Board shall be two (2) years. Where the position of any Board Member becomes vacant, the member appointed in his place shall complete the remainder of his predecessor's term.

The attendance of the majority of its members, including the president and at least one judge, shall be required for the meeting of the Board to be legally held.

The Board shall have jurisdiction to impose the penalties set out in Article (50) of this Law against Lawyers found to have committed violations.

Article 55

The Disciplinary Board shall hold its sessions at the headquarters of the Major Civil Court. Its sessions shall be closed.

The Disciplinary Board shall have the same competencies as a court in relation to the regulation of sessions, as well as the summoning of witnesses, their failure to attend, or refusal to give testimony, and other procedures.

The Disciplinary Board shall issue its decision by the majority vote. The decision shall, at the time of its pronouncement, state the reasons upon which it is based; otherwise, it shall be void.

Article 56

The Lawyer and the Minister shall, at the request of the complainant, have the right to appeal the decisions issued by the Disciplinary Board.

An appeal by the Lawyer against the decisions of the Disciplinary Board shall be submitted within thirty (30) days from the date of Notification of the decision. An appeal by the Minister shall be submitted within thirty (30) days from the date on which the complainant is notified of the decision, as the case may be. The Lawyer, whether appellant or respondent, shall be notified of the date of the first hearing at least fifteen (15) days prior to the date fixed therefor.

The appeal shall be examined before the "Appeal Disciplinary Board for Lawyers", established by a decision of the Minister, presided over by a judge of a grade not lower than that of a president of the Civil High Court of Appeal, and comprising two judges selected by the Supreme Judicial Council, and two Practising Lawyers Admitted to Practise before the Court of Cassation and the Constitutional Court, appointed in coordination with the Association.

The term of membership of the Board shall be two (2) years. Where the position of any Board Member becomes vacant, the member appointed in his place shall complete the remainder of his predecessor's term.

This Board shall follow up the same procedures adopted by the Disciplinary Board, set out in Article (55) of this Law.

Article 57

Final disciplinary decisions issued against Lawyers shall be recorded in a special register at the Ministry, and the penalty shall be noted in the register in which the Lawyer is entered.

Except in cases involving the imposition of a written warning or an administrative fine, the Competent Authority at the Ministry shall notify the Court Clerks Department, the Public Prosecution, and other relevant authorities concerned with the penalties imposed on the Lawyer.

Where a decision provides for the removal of a Lawyer's name from the Roll or for suspension from the practice of the legal profession for a period exceeding one year, its operative part shall be published in the Official Gazette without the grounds.

Article 58

A Lawyer against whom a disciplinary penalty of suspension from the practice of the legal profession has been imposed shall, for a certain period, be deprived of all rights of Lawyers provided for in this Law. He shall be prohibited from carrying on any legal practice throughout this period. In the event of a breach of this prohibition, he shall be subject to a disciplinary penalty of removal from the Roll imposed by the Board.

Subject to the provisions of the preceding paragraph, a Lawyer against whom a disciplinary penalty of suspension from the practice of the legal profession for a specified period has been imposed shall be subject to the provisions of this Law.

Article 59

Without prejudice to any more severe penalty provided for in the Penal Code or any other law, whoever impersonates a Lawyer shall be punished by imprisonment and a fine of not less than BHD five hundred (500) and not more than BHD five thousand (5,000), or either of these penalties.

Any person who, in violation of the provisions of this Law, engages in any legal practice while not registered on the Roll of Practising Lawyers or the Roll of Trainee Lawyers, or while being suspended from the practice of the legal profession, shall be punished with imprisonment for a period not exceeding one year and with a fine of not less than BHD three hundred (300) and not exceeding BHD three thousand (3,000), or with either one of these two penalties.

In the event of conviction for the crime referred to in the preceding paragraph, the court shall order the permanent or temporary closure of the premises in which the violation was committed for a period not exceeding thirty (30) days, and the confiscation of any assets therein, without prejudice to the rights of bona fide third parties. The court shall also order the return of any funds obtained from the crime and any proceeds thereof, if any.

Article 60

Without prejudice to the criminal liability of the natural person, a legal person in whose name, for whose account, or to whose benefit any of the crimes provided for in this Law is committed, shall be punished with a fine of not less than BHD one thousand (1,000) and not exceeding BHD ten thousand (10,000), where such crime is the result of any act, omission, approval, concealment, or gross negligence.

Article 61

Any person who assaults a Lawyer, or threatens or insults him, whether by gesture, words, or any other way, in the course of, or by reason of, the practice of his profession, shall be punished with the penalty prescribed by law for the corresponding crime committed against any member of the court panel.

Article 62

Except in cases of flagrante delicto, a Lawyer may not be arrested, detained in custody, or have criminal proceedings instituted against him for a crime relating to the practice of the legal profession except by an order from the Public Prosecutor or his delegate.

Without prejudice to the provisions of Article (63) of this Law, a Lawyer or a Lawyer's Office may not be searched in connection with a crime relating to the practice of the legal profession except by the Public Prosecution.

In all cases, the Association shall be notified of any measures taken against the Lawyer. The Chairman of the Association, or his delegate, may attend the investigation.

Chapter 8 - Final Provisions

Article 63

The Competent Authority or external auditors appointed by the Ministry may conduct on-site visits of Law Offices, Foreign Legal Consultancy Offices, and other entities to examine the documents, records, and instruments relating to the procedures for prohibiting and combating money laundering, terrorism financing, and illicit cross-border transfer of money, to verify their compliance with the provisions of Bahrain Decree-Law No. 4/2001 on the Prohibition and Combating of Money Laundering and Terrorism Financing[4 p.14], and the decisions issued in implementation thereof.

Article 64

Except for decisions imposing disciplinary penalties, any person whose request has been rejected or against whom a decision has been issued pursuant to the provisions of this Law may file a grievance with the Civil High Court of Appeal within thirty (30) days from the date of Notification of such rejection or of the issuance of the decision. The decision of the court on such grievance shall be irrevocable.

Article 65

The provisions of Bahrain Decree-Law No. 3/1972 on Judicial Fees[5 p.14] shall apply to grievances filed in accordance with the provisions of this Law and to requests for the assessment of Fees.

Notes

1. ^ [p.2] This Law shall come into force on the day following its publication in the Official Gazette, pursuant to Article 5 thereof.

2. ^ [p.2] The aforementioned Bahrain Decree-Law No. 26/1980 dated 08/12/1980 on the promulgation of the Legal Profession Law, which is abrogated pursuant to this Article, was published in the Official Gazette of the Kingdom of Bahrain, Issue No. 1414 dated 18 December 1980, P. 3.

3. ^ [p.8] Refer to Bahrain Decree-Law No. 4/2001 dated 29/01/2001 on the Prohibition and Combating of Money Laundering and Terrorism Financing, referred to above, and published in the Official Gazette of the Kingdom of Bahrain, Issue No. 2462 dated 31 January 2001, P. 31.

4. ^ [p.12] Refer to Bahrain Decree-Law No. 4/2001 dated 29/01/2001 on the Prohibition and Combating of Money Laundering and Terrorism Financing, referred to above, and published in the Official Gazette of the Kingdom of Bahrain, Issue No. 2462 dated 31 January 2001. P. 31.

5. ^ [p.13] Refer to aforementioned Bahrain Decree-Law No. 3/1972 dated 09/03/1972 on Judicial Fees, published in the Official Gazette of the Kingdom of Bahrain, Issue No. 961 dated 23 March 1972, P. 3.